

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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LUIS SANTIAGO,

Plaintiff designates Kings
County as the place of trial

Plaintiff,

SUMMONS

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE
OFFICER PAUL E. LOUIS- Shield No. 17219 and
JOHN DOES-Police Officers as yet unidentified,

Locus of the Occurrence at
89 Carlton Avenue
Brooklyn, New York 11205

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

POLICE OFFICER CHRISTOPHER E.
FRANCIS-Shield No. 10068
Tax ID # 965108
c/o New York City Police Department-
Police Service Area (PSA) 3
25 Central Avenue
Brooklyn, New York 11206

POLICE OFFICER PAUL E. LOUIS- Shield
No. 17219
Tax ID # 958840
c/o New York City Police Department-
Housing Borough Brooklyn Impact Response
Team (HBK RT)
Police Service Area (PSA) 3
25 Central Avenue
Brooklyn, New York 11206

Dated: Brooklyn, New York
April 11, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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LUIS SANTIAGO,

COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE
OFFICER PAUL E. LOUIS- Shield No. 17219 and
JOHN DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF LUIS SANTIAGO**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on July 14, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff was held on January 18, 2024.

6. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, THE CITY OF NEW YORK, owned the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York.

8. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, operated the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York.

9. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, controlled the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York.

10. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York.

11. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219, was a legal passenger in the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York.

12. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendants, JOHN DOES-Police Officers as yet unidentified, were legal passengers in the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York.

13. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York, with the knowledge, permission and consent of defendant, THE CITY OF NEW YORK.

14. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, was an employee of the defendant, THE CITY OF NEW YORK.

15. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219, was an employee of the defendant, THE CITY OF NEW YORK.

16. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendants, JOHN DOES-Police Officers as yet unidentified, were employees of the defendant, THE CITY OF NEW YORK.

17. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York, within the scope of his employment.

18. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219, was a legal passenger in the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York, within the scope of his employment.

19. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendants, JOHN DOES-Police Officers as yet unidentified, were legal passengers in the motor vehicle used as a New York City Police Department motor vehicle, bearing plate number 4377, State of New York, within the scope of their employment.

20. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, LUIS SANTIAGO, owned a motorcycle, specifically a dirt bike, State of New York.

21. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, LUIS SANTIAGO, operated a motorcycle, specifically a dirt bike, State of New York.

22. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, LUIS SANTIAGO, controlled a motorcycle, specifically a dirt bike, State of New York.

23. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, LUIS SANTIAGO, operated and controlled a motorcycle, specifically a dirt bike, State of New York.

24. That at all times hereinafter mentioned, on the roadway at or about the front of 89 Carlton Avenue, in the County of Kings, City and State of New York, was and still is a public highway used extensively by the public in general.

25. That on May 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the motor vehicle owned by the defendant, THE CITY OF NEW YORK, operated by the POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, and occupied by the defendants, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, struck the plaintiff who was operating his motorcycle, specifically a dirt bike, at the aforementioned location.

26. That the aforesaid collision and injuries resulting therefrom, were due solely and wholly to the careless and negligent manner in which the defendants owned, operated and

controlled the motor vehicle without this plaintiff in any way contributing thereto.

27. That by reason of the foregoing and the negligence of said defendants, this plaintiff sustained serious, severe, and permanent injuries to his limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

28. That by reason of the wrongful, negligent and unlawful actions of defendants, as aforesaid, the plaintiff sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

29. That by reason of the foregoing and the negligence of the said defendants, this plaintiff is informed and verily believes his aforesaid injuries are permanent and that he will permanently suffer from the effects of his aforesaid injuries and he will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

30. That by reason of the foregoing, this plaintiff was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses.

31. That by reason of the foregoing, the plaintiff has been unable to attend to his usual activity in the manner required.

32. That by reason of the wrongful, negligent and unlawful actions of defendants, as aforesaid, the plaintiff was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

33. This action falls within one or more of the exceptions set forth in CPLR §1602.

34. That as a result of the defendants' negligence as aforesaid, this plaintiff, LUIS SANTIAGO, has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF LUIS SANTIAGO**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LUIS SANTIAGO, was lawfully present on the roadway at or about the front of 89 Carlton Avenue, in the County of Kings, City and State of New York.

37. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, LUIS SANTIAGO, was struck while operating his motorcycle, specifically a dirt bike by the motor vehicle owned by the defendant, THE CITY OF NEW YORK, operated by the defendant, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, and occupied by the defendants, POLICE OFFICER PAUL E. LOUIS-Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified. The defendants intentionally operated said vehicle so as to cause it to strike the plaintiff. Improperly using said vehicle as a means of apprehension. The plaintiff was approached and was assaulted and battered by the defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS- Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of having a Taser and/or other conductive energy device used against the plaintiff, which was too close of a distance to plaintiff's body causing injury. Thereafter the plaintiff was transported by ambulance to New York Presbyterian Brooklyn Methodist Hospital where he received treatment for his injuries and held at the hospital under police custody for approximately a week. After his recovery, the plaintiff was arraigned and then was released on his own recognizance while in the hospital.

38. That on May 8, 2023 , and at all times hereinafter mentioned and upon information and belief, plaintiff, LUIS SANTIAGO, was assaulted and battered by defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS-

Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

39. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

40. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, LUIS SANTIAGO, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

41. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

42. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

43. By the reason of the foregoing, the plaintiff, LUIS SANTIAGO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF LUIS SANTIAGO**

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

45. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE

OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, LUIS SANTIAGO.

46. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

47. By the reason of the foregoing, the plaintiff, LUIS SANTIAGO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF LUIS SANTIAGO**

48. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "47" inclusive with the same force and effect as if more fully set forth at length herein.

49. That on May 8, 2023 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, LUIS SANTIAGO.

50. That on May 8, 2023 , and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

51. That as a result of the aforesaid false arrest and confinement, the plaintiff, LUIS SANTIAGO, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

52. By the reason of the foregoing, the plaintiff, LUIS SANTIAGO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS ON BEHALF OF LUIS SANTIAGO**

53. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "52" inclusive with the same force and effect as if more fully set forth at length herein.

54. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

55. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, LUIS SANTIAGO.

56. That as a result of said intentional and negligent acts, the plaintiff, LUIS SANTIAGO, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

57. By reason of the foregoing, the plaintiff, LUIS SANTIAGO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF LUIS SANTIAGO**

58. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "57" inclusive with the same force and effect as if more fully set forth at length herein.

59. That on May 8, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and

initiate a prosecution in bad faith.

60. That on April 2, 2023 , and at all times hereinafter mentioned and upon information and belief, defendants POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, LUIS SANTIAGO.

61. That on April 2, 2023 , and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

62. By reason of the foregoing, plaintiff, LUIS SANTIAGO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF LUIS SANTIAGO**

63. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "62" inclusive with the same force and effect as if more fully set forth at length herein.

64. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, LUIS SANTIAGO.

65. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

66. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the

fabrication of evidence and perjury.

67. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

68. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

69. As a direct and proximate result of this unlawful conduct, the plaintiff, LUIS SANTIAGO, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF LUIS SANTIAGO**

70. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "69" inclusive with the same force and effect as if more fully set forth at length herein.

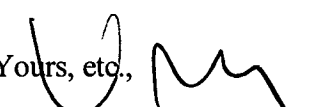
71. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

72. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CHRISTOPHER E. FRANCIS-Shield No. 10068, POLICE OFFICER PAUL E. LOUIS- Shield No. 17219 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

73. By the reason of the foregoing, the plaintiff, LUIS SANTIAGO, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, LUIS SANTIAGO, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
April 11, 2024

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
LUIS SANTIAGO
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23CC04-02

INDIVIDUAL VERIFICATION

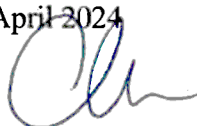
STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

LUIS SANTIAGO, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Sworn to before me this 15th
of April 2024



NOTARY PUBLIC

Luis Santiago
LUIS SANTIAGO

CHRISTOPHER VITORATOS
Commissioner of Deeds, City of New York
Number: 4-7212
Certificate Filed in Queens County
Commission Expires December 1, 2024